

		Here, the Court finds that Plaintiff met all procedural requirements and provided all information in support of the proposed amendment pursuant to California Rules of Court, rule 3.1324(a) & (b). Plaintiff shall file the proposed First Amended Complaint within 10 days of this order. Plaintiff to give notice.
107	O’Kane v. Radovich, 2022-01276312	Motion to Continue Trial – MOOT
108	Premier Liberty Development LLC v. Nguyen, 2018-01008782	Plaintiff’s Motion for Summary Judgment – DENIED This case involves the priority of deeds of trust on a piece of commercial real property. Plaintiff Premier Liberty Development’s operative complaint contains a single cause of action for declaratory relief of three issues: (1) the reconveyance of Premier’s deed of trust was forged and the Premier deed of trust remains superior to Defendant Velocity Commercial Capital’s deed of trust (2) Premier had the right to foreclose on its lien created by the Premier deed of trust which remains as a lien on the Property superior to any claim by any defendant (including Velocity) to the Property after the recording of the Premier Deed of Trust; and (3) Velocity must disgorge and refund to Premier all sums which it received as restitution, specifically, the sum of \$2,573,757, together with all accrued interest from and after November 7, 2024, at the legal rate of ten percent (10%). To prevail on a motion for summary adjudication, a plaintiff must show that there is no defense to the cause of action, by proving each element of the cause of action itself. Once plaintiff makes such a showing, the burden shifts to the defendants to show a triable issue of material fact exists as to the cause of action or a defense thereto. (Code Civ. Proc., §437c(p)(1).) “To qualify for declaratory relief under section 1060, plaintiffs were required to show their action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy

involving justiciable questions relating to the rights or obligations of a party.” (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546.)

Plaintiff Premier fails to establish its initial burden under CCP 437c.

Rather than plainly addressing elements 1 and 2 for each of the 3 issues for “determination”, Plaintiff merely suggests there can be no triable issue of any material fact because the signature of the beneficiary and substituted trustee was forged. Plaintiff then goes on to argue why the Court can award monetary relief. Notably, these arguments are not raised until page 18 of the motion. Finally, to wrap everything up, Plaintiff concludes, “The practical effect of a judgment for Premier is straightforward: The court would declare that Premier’s trust deed is senior to Velocity’s trust deed, Velocity would repay what it owes from the May 2022 foreclosure sale, and the current owner would retain title free and clear of Premier’s then extinguished lien.” [Motion page 21: 10-13] However, the Court does not find the arguments to be nearly as straightforward as Plaintiff suggests.

Initially, this motion is difficult to analyze. Despite being a motion for summary judgment, Plaintiff seeks determination of three issues. But Plaintiff has lumped all the facts and issues together in both the memorandum of points and authorities and the separate statement. Making the analysis more difficult, there is no reference to any undisputed material facts or evidence in either party’s briefing. That is, neither party makes any effort to direct the Court to the facts or evidence it contends supports its claims. Without such direction, the Court is left to rummage through the papers to construct the evidence in support of the arguments. When faced with a procedural default which makes it more difficult for the trial court to efficiently resolve a summary judgment motion, the court is not required to simply ignore the defect. It is a party’s “duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers

to construct or resuscitate their case.” (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)

Even if Plaintiff did make arguments relating to each element of each of the three “determinations”, it fails to cite to any evidence in support of those arguments.

Even if Plaintiff had sustained its initial burden on this motion, Defendant has established triable issues of material fact by raising several affirmative defenses.

Defendant argues that the issues as to which Plaintiff seeks declaratory relief all fail as a matter of law because Plaintiff seeks declarations concerning completed historical events, not the resolution of any present controversy. Defendant cites to Babb v. Superior Court (1971) 3 Cal.3d 841, 848: “[D]eclaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.”

Here, arguably, as to the first two issues to be “determined”, these have already occurred. No preventative benefit is possible by a Court’s determination relating to issues 1 and 2. This creates a triable issue.

Also, there are triable issues of material fact as to whether a declaration/determination as to the money sought is a proper subject for declaratory relief. As cited by Defendant, “Declaratory relief operates prospectively to declare future rights, rather than to redress past wrongs. [Citation.] Where, as here, a party has a fully matured cause of action for money, the party must seek the remedy of damages, and not pursue a declaratory relief claim. [Citation.]” (Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan (2007) 150 Cal.App.4th 1487, 1497.)

Furthermore, this Court cannot say WFG National Title Ins. Co. v. Wells Fargo Bank, N.A. (2020) 51 Cal.App.5th

881 requires judgment in favor of Plaintiff as a matter of law.

When Judge Sherman granted a motion for summary adjudication in favor of Plaintiff and denied a motion for Defendant (which was reversed by the appellate court procedurally, NOT on the merits), he relied heavily on the WFG case. “The case of WFG National Title Ins. Co. v. Wells Fargo Bank, N.A. (2020) 51 Cal.App.5th 881, is on all fours with this case and compels a ruling in plaintiff’s favor. The court held that a forged deed is void, and that any deed of trust derived from the forged deed does not result in the new owner or its lender having any valid interest in the property. Rather, the prior lender still maintains its interest, and cannot be found negligent for failing to monitor the status of title to the property and discover the forged documents earlier. The fact that a new buyer is a bona fide purchaser and its lender acted in good faith without knowledge of the wrongdoing does not change the outcome. The doctrine of equitable estoppel requires the original lender to have been negligent, but the lender was not negligent in failing to discover the forged documents earlier because it had no duty as a matter of law to check the record.”

Here, in opposition, Defendant argues that although a forged instrument is generally void and cannot convey title, California recognizes an exception where the true owner's own negligence contributed to the loss. Under the doctrine of equitable estoppel, an innocent party may rely on a forged instrument if the original owner's negligence enabled the forgery or otherwise caused the harm. (Civ. Code, § 3543; WFG, supra, 51 Cal.App.5th 881; Wutzke v. Bill Reid Painting Service, Inc. (1985) 151 Cal.App.3d 36, 44-45; Crittenden v. McCloud (1951) 106 Cal.App.2d 42, 50.

In WFG, the Court did not hold otherwise. Rather, it simply found negligence by the owner of record cannot be predicated on a failure to monitor the public records or to make known the existence of a forgery in some way to prospective grantees or the public generally.

Further, Defendant distinguishes WFG by arguing that in WFG, Wells Fargo was the senior lienholder who was entirely unaware of and had no connection to the fraudulent transaction; the fraud was perpetrated entirely by third parties acting without any nexus to Wells Fargo's conduct. Here, by contrast, Premier's own borrowers, Jimmy Phan and Stephen Nguyen, were the perpetrators of the forgery, and Premier had ongoing, active dealings with these parties, including receiving monthly mortgage payments through March 2017 from parties other than its original borrowers. Premier's receipt of payments from unknown third parties without inquiry, combined with the fact that title to the Property had been transferred multiple times, created circumstances that a prudent lender in Premier's position would have investigated. Unlike Wells Fargo in WFG, Premier had a direct contractual relationship with the forgers and was receiving the economic benefit of the fraudulent scheme's proceeds.

Defendant further argues that the negligence question, whether Premier's failure to investigate the identity of the parties making payments, enforce the due-on-sale clause, or inquire into the chain of title constituted a breach of a duty of reasonable care, presents a triable issue of material fact that cannot be resolved on MSJ.

A triable issue of material fact exists as to the issue of equitable estoppel/negligence. Although the 2017 case was dismissed while the 2018 case was on appeal, Judge Horn's order that there was a triable issue of material fact "regarding whether the failure to discover the fraudulent conveyances earlier was negligent is still the law of the case.

There being no objection to either request for judicial notice, both parties' requests are granted to the extent the documents exist, but not to the truth of the contents therein.

In ruling on the motion, the court need only rule on those evidentiary objections that it deems material to disposition of the motion. (Code Civ. Proc., § 437c(q).) Here, the Court finds Plaintiff's objections to

		Defendant's evidence are immaterial to the disposition of the motion. Defendant to give notice.
109	Quiroz v. Cable Tech Corp., 2023-01340996	Motion to Consolidate
110	Shelton v. Children's Hospital of Orange County, 2025-01451163	Motions for Summary Judgment and/or Adjudication – NO TENTATIVE AS OF 08/19/2026 – CHECK BACK
111	Solouki v. Saint-Gobain Performance Plastics Corp., 2025-01507443	Motion to be Relieved as Counsel – CONTINUED Gloria Tumanyan ("Moving Attorney") moves to be relieved as counsel of record for plaintiff Tony Solouki. Moving Attorney has not submitted the mandatory declaration (MC-052) and proposed order forms (MC-053) required under the California Rules of Court. Thus, the motion is CONTINUED to September 28, 2026, at 9:00 a.m. in Department N14. Moving Attorney is ORDERED to timely file and serve the appropriate forms prior to the continued hearing date. Moving Attorney to give notice.
112	Virgili v. Crites, 2025-01527043	Motion to Compel Arbitration – CONTINUED TO 12/12/2026, 9:00 a.m. PER COURT'S 08/13/2026 ORDER